

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Catherine Cosmai	Team: Team # 4	CCRB Case #: 201101491	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 01/29/2011 1:00 AM	Location of Incident: 83rd Precinct stationhouse	18 Mo. SOL 7/29/2012	Precinct: 83		
Date/Time CV Reported Fri, 02/04/2011 1:43 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 02/04/2011 1:43 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Derek Almeida	25236	946426	083 PCT
2. An officer			

Officer(s)	Allegation	Investigator Recommendation
A . POM Derek Almeida	Abuse: PO Derek Almeida did not obtain medical treatment for § 87(2)(b)	A . Complainant Uncooperative
B . An officer	Abuse: An officer did not obtain medical treatment for § 87(2)(b)	B . Complainant Uncooperative

Case Summary

On February 4, 2011, § 87(2)(b) called the CCRB and filed a complaint against NYPD officers. § 87(2)(b) reported that on January 29, 2011, at approximately 1:00 a.m., he was arrested § 87(2)(b). § 87(2)(b) has high blood pressure. In front of the desk in the precinct, § 87(2)(b) told PO Almeida, who he stated was the arresting officer, and the desk officer that he was going to faint and requested an ambulance. § 87(2)(b) was put into a cell until the next morning (**Allegation A** and **Allegation B**). § 87(2)(b) provided the shield number of PO Derek Almeida § 87(2)(g).

A search in BADS revealed negative results for an arrest for § 87(2)(b) on January 29, 2011.

On February 7, 2011, the undersigned called and spoke to § 87(2)(b) who stated he would call back at the end of the day to schedule an appointment. On February 8, 2011, the undersigned called and spoke to § 87(2)(b) who scheduled to provide a statement to the CCRB on February 15, 2011. On February 15, 2011, § 87(2)(b) failed to appear for his appointment and a missed appointment letter was sent to him. On February 16, 2011, February 17, 2011 and February 18, 2011, the undersigned called § 87(2)(b) but his phone number was out of service. On February 23, 2011, a final please call letter was sent to § 87(2)(b). To date, the letters have not been returned by the United States Postal Service nor has § 87(2)(b) contacted the CCRB.

It is therefore recommended that **Allegation A** and **Allegation B** be closed as *Complainant Uncooperative*.

Team: __4__

Investigator: _____ : _____
Signature Catherine Cosmai _____
Print _____
Date 03/02/11

Supervisor: _____
Title/Signature _____
Print _____
Date _____

Reviewer: _____
Title/Signature _____
Print _____
Date _____

Reviewer: _____
Title/Signature _____
Print _____
Date _____